THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT-II)

(CAA)-18/ND/2021

Connected with CA (CAA)-122/ND/2020

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements & Amalgamations) Rules, 2016.

AND

In the matter of Scheme of Arrangements

OF

Newwave Commercial Private Limited
CIN: U51109DL2005PTC274734
Registered office:
B-19/1, Shyam Vihar, Phase- II, Near Mata Mandir,
Gola Dairy Road, Najafgarh, New Delhi-110043.
(Applicant Company 1/Transferor Company)

AND

P.R. Kumar Capital Private Limited
CIN: U74899DL1985PTC022120
C-2/4, Safdarjung Development Area,
New Delhi – 110016.
(Applicant Company 2 /Transferee Company)

Order Pronounced on: 27.10.2021

CORAM:

MR. ABNI RANJAN KUMAR SINHA, MEMBER (JUDICIAL)

MR. L. N. GUPTA, MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Ms. Amrita Sarkar, Advocate

ORDER

PER SHRI L. N. GUPTA, MEMBER (T)

This petition for Second Motion has been filed under the provisions of Sections 230-232 of the Companies Act, 2013 read with Rule 15(1) of the Companies (Compromises, Arrangements & Amalgamations) Rules, 2016 for the Scheme of Arrangement (for brevity **"the Scheme"**) praying for fixing a date of hearing of the main Company Petition for approving the Scheme of Arrangement by way of amalgamation as well as for issuance of direction for publication of notices and service of notices to the authorities concerned including regulators, if any. The Scheme will take effect from the Appointed date of April 01, 2019.

2. As per the averments, the Registered offices of both the Applicant Companies are located in Delhi and hence, falling within the territorial jurisdiction of this Bench.

3. From the records, it is seen that the First Motion application was filed before this Tribunal vide CA(CAA)-122/ND/2020 moved under Sections 230-232 of the Companies Act, 2013 and vide order dated 18.01.2021, directions were issued by this Tribunal, whereby the meetings of the Equity Shareholders, Secured Creditors and Unsecured Creditors of both the Applicant Companies were dispensed with.

4. The petitioners have filed the present application on 22.01.2021, which is within the limitation. Hence, the application is not time barred.

5. The Deputy Commissioner of Income Tax vide its report dated 05.04.2021 has stated that it has objection to the present application being admitted. Hence, it has requested that the present application be rejected. Subsequently, on 23.08.2021 the IT Department has filed another affidavit stating that it has no objection to the said Scheme of Amalgamation in view of the undertaking given by the Transferee Company.

6. During the course of hearing, the petitioners were directed to intimate the Reserve Bank of India as regards to the Scheme of Amalgamation, which has been duly complied with and service affidavit to that effect has also been filed. The RBI has also filed its report stating that it has no objection in the present application being allowed.

7. It is hereby ordered as follows:

(i) **The Petition stands Admitted.**

(ii) The date of hearing of the Petition filed for the approval of the Scheme is fixed on **15th December, 2021**.

(iii) Notice of the hearing shall be advertised in the newspapers namely, "Indian Express" (English, Delhi edition) and "Jansatta" (Hindi, Delhi edition) not less than 40 days before the aforesaid date fixed for hearing.

8. In addition to the publication of the above Public Notice, the Applicant Companies shall individually serve the notices of this Petition to the following Authorities, namely :

(a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs,

(b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs,

(c) Official Liquidator, MCA, New Delhi

(d) Income Tax Department, New Delhi

(e) Reserve Bank of India

(f) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme;

at least 40 days before the date fixed for hearing of this Petition.

9. Further, notices shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexure filed therewith at least 30 days before the date fixed for hearing.

10. That the Applicant Companies shall, at least 7 days before the date of hearing of the Petition, file an Affidavit of Service in relation to the Newspaper publication effected as well as service of Notices on the Authorities as specified above including the Sectoral Regulators, if any.

11. Objections, if any, by the Authorities to whom Notices are given on or before the date of hearing fixed herein may be filed to the "SCHEME" contemplated by the Applicant Companies, failing which it will be considered by this Tribunal that there is no objection to approval of the "SCHEME" on the part of the Authorities, subject to other conditions as may be applicable under the Companies Act, 2013 and relevant rules framed there under being satisfied.

Sd/-

(L. N. Gupta)
Member (T)

Sd/-

(Abni Ranjan Kumar Sinha)
Member (J)